

**SENATE FLOOR VERSION**

February 17, 2025

SENATE BILL NO. 903

By: Rosino of the Senate

and

Stinson of the House

An Act relating to the state Medicaid program; amending 63 O.S. 2021, Section 5009.2, which relates to the Advisory Committee on Medical Care for Public Assistance Recipients; adding specified member; updating statutory language; and providing an effective date.

BE IT ENACTED BY THE PEOPLE OF THE STATE OF OKLAHOMA:

SECTION 1. AMENDATORY 63 O.S. 2021, Section 5009.2, is amended to read as follows:

Section 5009.2. A. The Advisory Committee on Medical Care for Public Assistance Recipients, created by the Oklahoma Health Care Authority pursuant to 42 Code of Federal Regulations, Section 431.12, for the purpose of advising the Authority about health and medical care services, shall include among its membership of no more than ~~fifteen (15)~~ sixteen (16) the following:

1. Board-certified physicians and other representatives of the health professions who are familiar with the medical needs of low-income population groups and with the resources available and

1 required for their care. The Advisory Committee shall, at all  
2 times, include at least one physician from each of the six classes  
3 of physicians listed in Section 725.2 of Title 59 of the Oklahoma  
4 Statutes. All such physicians and other representatives of the  
5 health professions shall be participating providers in the State  
6 Medicaid Plan;

7 2. Members of consumers' groups, including, but not limited to:

- 8 a. Medicaid recipients, and
- 9 b. representatives from consumer organizations including  
10 a member representing nursing homes, a member  
11 representing individuals with developmental  
12 disabilities and a member representing one or more  
13 behavioral health professions;

14 3. The Director of the Department of Human Services or  
15 designee;

16 4. The Commissioner of Mental Health and Substance Abuse  
17 Services or designee;

18 5. A member approved and appointed by a state organization or  
19 state chapter of a national organization of pediatricians dedicated  
20 to the health, safety and well-being of infants, children,  
21 adolescents and young adults, who shall:

- 22 a. monitor provider relations with the Oklahoma Health  
23 Care Authority, and
- 24 b. create a forum to address grievances; ~~and~~

1       6. A member who is a member or citizen of a federally  
2 recognized American Indian tribe or nation whose primary tribal  
3 headquarters is located in this state; and

4       7. A member representing a contracted entity as defined in  
5 Section 4002.2 of Title 56 of the Oklahoma Statutes or a health plan  
6 association representing more than one such contracted entity.

7       Beginning on January 1, 2022, appointments made to the Advisory  
8 Committee shall be for a duration not to exceed four (4) consecutive  
9 calendar years.

10       B. The Advisory Committee shall meet bimonthly to review and  
11 make recommendations related to:

12       1. Policy development and program administration;

13       2. Policy changes proposed by the Authority prior to  
14 consideration of such changes by the Authority;

15       3. Financial concerns related to the Authority and the  
16 administration of the programs under the Authority; and

17       4. Other pertinent information related to the management and  
18 operation of the Authority and the delivery of health and medical  
19 care services.

20       C. 1. The Administrator of the Authority shall provide such  
21 staff support and independent technical assistance as needed by the  
22 Advisory Committee to enable the Advisory Committee to make  
23 effective recommendations.

1        2. The Advisory Committee shall elect from among its members a  
2 chair and a ~~vice-chair~~ vice chair who shall serve one-year terms. A  
3 member may serve more than one ~~(1)~~, but not more than four ~~(4)~~,  
4 consecutive one-year terms as chair or ~~vice-chair~~ vice chair. A  
5 majority of the members of the Advisory Committee shall constitute a  
6 quorum to transact business, but no vacancy shall impair the right  
7 of the remaining members to exercise all of the powers of the  
8 Advisory Committee.

9        3. Members shall not receive any compensation for their  
10 services but shall be reimbursed pursuant to the provisions of the  
11 State Travel Reimbursement Act, Section 500.1 et seq. of Title 74 of  
12 the Oklahoma Statutes.

13        D. The Authority shall give due consideration to the comments  
14 and recommendations of the Advisory Committee in the Authority's  
15 deliberations on policies, administration, management and operation  
16 of the Authority.

17        SECTION 2. This act shall become effective November 1, 2025.

18 COMMITTEE REPORT BY: COMMITTEE ON HEALTH AND HUMAN SERVICES  
19 February 17, 2025 - DO PASS  
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